

Calendar Lines 1 and 2

Case Name: County of Santa Clara v. Kelly Ranger

Case No.: 21CV389607

This is a limited civil action brought by plaintiff County of Santa Clara (County) against self-represented defendant Kelly Ranger (doing business as Los Gatos Massage and Cryotherapy), for violations of public health orders issued in response to the COVID-19 pandemic. The County filed its complaint on October 8, 2021, asserting two causes of action: (1) recovery of administrative fines under Santa Clara County Urgency Ordinance No. NS-9.291, and (2) enforcement of Government Code section 25132, which allows for the bringing of civil actions to prosecute violations of county ordinances. The County sought administrative fines and late fees totaling \$13,200.00. (See Complaint, ¶ 37.)

According to the allegations and cross-allegations in this case, Ranger is a Chiropractic Assistant who, after an initial period of sheltering in place during the COVID-19 pandemic, began seeing clients again in May 2020. Ranger did not require her clients to wear a face covering, and she did not wear a face covering herself while working. The County learned of Ranger's policy and practice regarding masking, leading it to issue a Notice of Violation by a County enforcement officer in October 2020.

The County moved for summary judgment, which the court granted after a hearing. Judgment was entered in the County's favor in July 2025. The judgment was filed on September 9, 2025. Ranger then filed a petition for writ of error coram nobis, which was denied by the court on November 4, 2025. A notice of entry of the judgment entered in the County's favor was filed on November 17, 2025. Ranger appealed. That appeal was dismissed by the court's Appellate Division as untimely on April 22, 2026.

At issue are two matters: (1) the County's motion for attorney fees, filed in January 2026; and (2) Ranger's motion to strike "Plaintiff's Declaration in support of Plaintiff's Motion for Attorneys' Fees," filed in March 2026 and opposed by the County. Other than the motion to strike, Ranger did not file an opposition to the fee motion.

MOTION TO STRIKE

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); see also *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the challenged pleading as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.) The court cannot consider extrinsic evidence in ruling on a motion to strike.

California Rule of Court 3.1322(a) requires that "[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322(a).)

Ranger apparently failed to comply with Code of Civil Procedure section 435.5, because her motion to strike is not accompanied by the required declaration describing what meet and confer efforts were made before the motion was filed. But the court will consider the motion because Code of Civil Procedure section 435.5, subdivision (a)(4), states that insufficient meet-and-confer efforts “shall not be grounds to grant or deny the motion to strike.”

Ranger seeks to strike all or portions of paragraphs 5, 7, 8, 9, 11, and 20-25 in the declaration of Deputy County Counsel Willie Nguyen in support of the County’s motion. The motion is expressly brought “pursuant to Code of Civil Procedure sections 435 and 436.” (See Ranger’s Notice of Motion and Motion at p. 3:6.)

The fatal defect in Ranger’s motion to strike is that it is not directed at a filing to which Code of Civil Procedure section 436 applies. A party, “within the time to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1).) “As used in this section: (1) The term ‘complaint’ includes a cross-complaint. (2) The term ‘pleading’ means a demurrer, answer, complaint or cross-complaint.” (Code Civ. Proc., § 435, subd. (a).) “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms that it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

A declaration in support of a motion for attorneys’ fees (and a motion for attorneys’ fees itself) is not a “demurrer, answer, complaint, or cross-complaint.” It is therefore not a “pleading” under the foregoing code sections. A party cannot bring a motion to strike a non-pleading under Code of Civil Procedure sections 435 and 436.

Because no motion to strike a declaration can be brought under Code of Civil Procedure section 435 and 436, Ranger’s motion to strike is denied.

ATTORNEY FEE MOTION

The County seeks attorney fees as the prevailing party in this litigation. County Urgency Ordinance NS-9.291, section 6.i, provides: “In addition to the administrative fee and late fee, the County is entitled to recover all costs, expenses, fees, and attorneys’ fees associated with collecting upon any administrative fines, fees, or costs authorized by this Ordinance.” (See also *id.* at section 4.f.2 [“The County Counsel is hereby authorized to file a civil action on behalf of the County to enjoin any violation(s) of this Ordinance and to obtain other appropriate relief needed to cease and abate such violations, as well as to recover all associated County costs, attorneys’ fees, and any fines or penalties imposed.”]; Code Civ. Proc., § 1033.5, subd. (a)(10) [attorney fees recoverable when authorized by law or statute].) The County’s request for judicial notice of that ordinance is granted. (Evid. Code, § 452, subd. (b).)

The attorney fee award should cover “all the hours reasonably spent” by the prevailing party’s attorneys. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, italics omitted; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 624, 639.) Fees are calculated using the lodestar method, i.e.,

“the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095-1096.)

The hourly rates sought by the County’s attorneys, ranging between \$265/hour to \$303/hour, are well within (and, indeed, below) the range of attorney fees charged for similar work in this region. The County seeks compensation for 325.5 hours of attorney time and 3.2 hours of paralegal time. That is a substantial number of hours, but the court observes that this case was heavily litigated. And Ranger’s repeated unsuccessful motions required responses by the County. The court concludes the number of hours claimed by the County is reasonable. The County is therefore awarded its full attorney fee request of \$92,558.40.

Even if the court construed Ranger’s motion to strike as an opposition to the attorney fee motion, those arguments are unpersuasive. The County is entitled to reasonable attorney fees for its employees’ work using the lodestar method despite its attorneys being salaried employees. (*City of Santa Rosa v. Patel* (2010) 191 Cal.App.4th 65, 71 [“The lodestar approach affords predictability to the process and avoids protracted litigation concerning the question of salaries, costs, and the internal economics of a law office.”].) Ranger also argues the declaration supporting the fee motion is insufficiently detailed. But the court finds the declaration provided adequate detail to support the fee request. (*United Grand Corp. v. Stollof* (2022) 74 Cal.App.5th 62, 70 [“ ‘ ‘trial courts have discretion to award fees based on declarations of counsel describing the work they have done and the court’s own view of the number of hours reasonably spent.’ ’ ”].)

CONCLUSION

Ranger’s motion to strike portions of the declaration of Deputy County Counsel Willie Nguyen in support of the County’s motion for attorney fees is denied.

The County’s motion for attorney fees is granted. Ranger is ordered to pay the County \$92,558.40 in attorney fees.

The court will prepare the order.

- oo0oo -

Calendar Line 4

Case Name: Online Brands LLC v. SJS Group LLC

Case No.: 23CV423336

This is an action for breach of contract brought by plaintiff Online Brands LLC (Plaintiff), a Delaware limited liability company, against defendant SJS Group LLC (SJS), a Nevada limited liability company. The underlying complaint, a form complaint, was filed in September 2023 and states a single cause of action for breach of a “CustomCuff Asset Purchase Agreement.” Plaintiff alleges that SJS stopped paying monthly installment payments required by the agreement.

A copy of the agreement is attached to the form complaint as exhibit A. The parties to the agreement are Sellers (Plaintiff; two Wyoming LLCs; CustomCuff LLC; and MB Brands LLC), and SJS identified as the Buyer. Article 10.8 of the agreement states that it is to be governed by California law and that the “parties” consent to jurisdiction in Santa Clara County. The agreement was signed by Theo Meta Hilb as Chief Marketing Officer of Plaintiff; Simon Bjorn-Henriksen as the Chief Executive Officer of both CustomCuff LLC and MB Brands LLC; and Suchi Jain Saxena as founder and Chief Executive Officer of SJS.

SJS filed a verified cross-complaint in April 2024 against Plaintiff, MB Brands LLC, Theo Meta Hilb and Simon Bjorn-Henriksen. The cross-complaint alleges causes of action for: (1) breach of contract (the same asset purchase agreement the complaint is based on); (2) fraud; (3) conversion; (4) cancellation of instruments; (5) unjust enrichment; and (6) unfair business practices. The cross-complaint is verified by Suchi Jain Saxena. SJS later sought and was granted permission to serve the cross-complaint on Theo Meta Hilb and Simon Bjorn-Henriksen by publication. Defaults were taken against them in December 2024. A motion to set aside those defaults was granted in October 2025.

At issue is a motion to quash service of the cross-complaint by Theo Meta Hilb and Simon Bjorn-Henriksen (hereafter, Cross-Defendants). SJS opposes.

REQUEST FOR JUDICIAL NOTICE

SJS has submitted a voluminous request for judicial notice. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

SJS seeks judicial notice of two facts related to telephone area codes and 22 documents. Copies of the documents are attached to the request as exhibits 1-22.

Evidence Code section 452, subdivision (h) does not apply to these documents or purported facts. (*Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 [“Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and

social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter.”].) Neither of Plaintiff’s proposed facts are noticeable under Evidence Code section 452, subdivision (g), which requires common knowledge within Santa Clara County. Plaintiff has not provided any information to support the claim. (See Evid. Code § 453, subd. (b).)

Judicial notice of exhibits 1-12 is denied. Evidence Code section 452, subdivision (h), does not apply. And documents and forms prepared by private persons, merely on file with state agencies, are not official acts noticeable under Evidence Code section 452, subdivision (d). (*Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607-608 [applications and supporting documents filed by private parties with Department of Insurance were not official acts of department subject to judicial notice]; *Hughes v. Blue Cross of N. Cal.* (1989) 215 Cal.App.3d 832, 856, fn. 2 [Statement of Information, although on file with a government agency, not subject to judicial notice as an official act under subdivision (c) because it was prepared by private parties, not the Secretary of State]; *People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599 [copies of articles of incorporation, statement by domestic corporation, and notice of issuance of shares were materials prepared by private person, merely on file with state agencies, and not official acts].)

Judicial notice of exhibits 13-22 is also denied. It is not necessary for the court to take notice of the court filings. And court records can generally only be noticed as to their existence and filing dates, which are not relevant to the material issue before the court. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].) The court orders (exhibits 17, 20, 22) are irrelevant to the material issue before the court here. Contrary to what SJS suggests, exhibits 21 and 22 (a declaration and a court order from the instant case) do not establish an “admission” by Plaintiff that Plaintiff, CustomCuff LLC, or MB Brands LLC are alter egos of the moving Cross-Defendants.

LEGAL STANDARD FOR MOTIONS TO QUASH SERVICE

Code of Civil Procedure section 418.10, subdivision (a)(1) authorizes a defendant to file a motion to quash service of summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) California courts “may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” (Code Civ. Proc., § 410.10.) The primary focus of the personal jurisdiction inquiry is the relationship of the defendant to the forum state. The constitutional touchstone of this inquiry is whether the defendant ‘purposefully established minimum contacts in the forum State. (*Rivelli v. Hemm* (2021) 67 Cal.App.5th 380, 391 (*Rivelli*); see also *Bristol-Myers Squibb Co. v. Superior Court of Cal., San Francisco Cty.* (2017) 582 U.S. 255 (*Bristol-Myers*) and *Burger King Corp. v. Rudzewicz* (1985) 417 U.S. 462, 474 (*Burger King*)).

“To comport with the constitutional requirements of due process, a California court may assert jurisdiction over a nonresident defendant (who has not consented to suit in the forum) *only* if the defendant’s minimum contacts with the forum state are ‘such that the maintenance of the suit ‘does not offend the traditional notions of fair play and substantial justice.’ The minimum contacts test ensures that ‘a defendant will not be haled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts’ but only ‘where the contacts proximately result from actions by the defendant *himself* that create a

‘substantial connection’ with the forum State.’ Personal jurisdiction under the minimum contacts framework may be either all-purpose (also called “general”) or case-linked (also called “specific”).” (*Rivelli, supra*, 67 Cal.App.5th at 391-392, internal citations omitted.)

Specific jurisdiction has three requirements. “First, the defendant must have purposefully availed himself of the privilege of conducting activities in this state, thereby invoking the benefits and protections of California’s laws. Second, the claim or controversy must relate to or arise out of the defendant’s forum-related contacts. Third, the exercise of jurisdiction must be fair and reasonable and should not offend notions of fair play and substantial justice. The case-linked jurisdictional analysis is intensely fact-specific.” (*Rivelli, supra*, 67 Cal.App.5th at 392-393, internal citations omitted.)

“When a nonresident defendant challenges a trial court’s exercise of personal jurisdiction, the plaintiff bears the initial burden to demonstrate facts justifying the exercise of jurisdiction. To meet this burden, a plaintiff must do more than make allegations. A plaintiff must support its allegations with ‘competent evidence of jurisdictional facts. Allegations in an unverified complaint are insufficient to satisfy this burden of proof.’ If the plaintiff makes this showing by a preponderance of the evidence on the first two requirements (i.e., that the defendant has purposefully availed itself of the forum and the plaintiff’s claims relate to or arise out of the defendant’s forum-related contacts), the burden shifts to the defendant to demonstrate that the exercise of jurisdiction would be unreasonable.” (*Rivelli, supra*, 67 Cal.App.5th at 393, internal citations omitted.)

“Where there is a conflict in the declarations, resolution of the conflict by the trial court will not be disturbed on appeal if the determination is supported by substantial evidence. [Citations.] However, where the evidence of jurisdictional fact is *not* conflicting, the question of whether a defendant is subject to personal jurisdiction is one of law.” (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1313 (*Elkman*); see also *Greenwell v. Auto-Owners Ins. Company* (2015) 233 Cal.App.4th 783, 789, citing *Elkman*.)

Arguments made for first time in reply briefs not considered. (*Tellez v. Rich Voss Trucking Inc.* (2015) 240 Cal.App.4th 1052, 1066 [courts do not consider points raised for the first time in a reply brief]; *Golden Door Properties, LLC v. Superior Court* (2020) 53 Cal.App.5th 733, 774 [new evidence is not permitted in reply papers unless it is “strictly responsive” to arguments made for the first time in the opposition].) The court has not considered the request for judicial notice submitted with Plaintiff’s reply. The court has considered the declarations from Cross-Defendants submitted with the reply because they respond to opposition arguments.

DISCUSSION

The motion to quash is supported by declarations from both of the individual Cross-Defendants. They assert that they do not reside in California or even in the United States. They contend that neither of them has ever had substantial contacts with California. Both Cross-Defendants also state they have never met any SJS representative in person, and that all of their communications with SJS were telephonic or electronic.

The Cross-Complaint fails to allege any basis for personal jurisdiction over the individual Cross-Defendants. SJS’s argument in its opposition to the motion that the

individual Cross-Defendants consented to California jurisdiction by bringing the underlying lawsuit is unpersuasive. Plaintiff Online Brands is the only plaintiff in the underlying lawsuit. SJS's argument depends entirely on the assertion that Plaintiff (the only entity that filed the complaint) is the alter ego of both individual Cross-Defendants.

The Cross-Complaint's agency and alter ego allegations are made on information and belief. They are insufficient to meet SJS's burden to allege alter ego or to show Cross-Defendants' purposeful avilment by a preponderance of the evidence. (Cross-Complaint at ¶¶ 2-10, 12-15, and 17.) Even when it is permissible to allege an ultimate fact on the basis of information and belief, a party cannot simply include the phrase "information and belief" without more. (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.) To plead an allegation on the basis of information and belief properly, a plaintiff must allege the facts or information that led it to infer or believe the truth of the ultimate factual allegation. (*Gomes, supra*, 192 Cal.App.4th at pp. 1158-59; see also *Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 100, 1106 ["where factual allegations are based on information and belief, the plaintiff must allege 'information that "lead[s] [the plaintiff] to believe that the allegations are true"'"].) Allegations made on information and belief that lack supporting information are not accepted as true. That the Cross-Complaint is verified does not make the boilerplate alter ego allegations sufficient to support an alter ego theory of liability, or to support SJS's "consent" theory of specific jurisdiction.

The declaration of Suchi Jain Saxena submitted with the opposition also does not support the alter ego theory. Conclusory statements that Saxena understood that the individual Cross-Defendants controlled Plaintiff, CustomCuff LLC, and MB Brands LLC, or that Saxena "determined" that the individual Cross-Defendants breached an agreement (the asset purchase agreement) that they were not parties to, do not constitute evidence. (*Clemens v. American Warranty Corp.* (1987) 193 Cal.App.3d 444, 452 ["Under California law, only a signatory to a contract may be liable for any breach."].) That both individual Cross-Defendants were officers of the seller entities and had, because of their position as officers, some influence over them, does not support an alter ego theory. Nor does it support a finding that the Cross-Defendants are subject to jurisdiction in California based on the alleged actions of Plaintiff, CustomCuff LLC, or MB Brands LLC. "[A] corporation is regarded as a legal entity, separate and distinct from its stockholders, officers and directors, with separate and distinct liabilities and obligations." (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538 (*Sonora*)). SJS has not provided any evidence that there was such a unity of interest between either Cross-Defendant and the seller entities that this separation should be disregarded.

SJS's apparent concern that the seller entities are going out of business does not itself support an alter ego theory or a purposeful avilment argument. "The alter ego doctrine does not guard every unsatisfied creditor of a corporation but instead affords protection where some conduct amounting to bad faith makes it inequitable for the corporate owner to hide behind the corporate form. Difficulty in enforcing a judgment or collecting a debt does not satisfy this standard." (*Sonora, supra*, 83 Cal.App.4th at 539.) The court also notes that the reply declaration from Cross-Defendant Simon Bjorn-Henriksen (which responds to points made in the opposition) states that Plaintiff Online Brands is an active Delaware LLC.

SJS has also failed to show purposeful avilment by either Cross-Defendant. "The purposeful avilment inquiry ... focuses on the defendant's intentionality. [Citation.] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities

toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on' his contacts with the forum. [Citation.] Thus, the 'purposeful availment' requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of 'random,' 'fortuitous,' or 'attenuated' contacts [citations], or of the 'unilateral activity of another party or a third person.' [Citations.]" (*Elkman, supra*, 173 Cal.App.4th at 1317.)

That Saxena resides in California is irrelevant to establishing purposeful availment by Cross-Defendants. (See Saxena Decl. at ¶ 13.) Saxena is not a party to the asset purchase agreement as a buyer, only SJS is. And SJS is a Nevada LLC, operating out of Las Vegas, Nevada. (Cross-Complaint at ¶ 1.) Even if there was evidence to support an alter ego theory, entering into a contract with SJS would not in itself be evidence of purposeful availment with California as a forum.

SJS's remaining evidence, consisting of declarations from SJS Counsel Joel Weinberg and from a Caitlyn Williams, does not meet its burden to show by a preponderance of the evidence that either Cross-Defendant (and particularly Theo Meta Hilb) is subject to specific jurisdiction in California. To the extent those declarations raise anything of potential consequence, the court finds the two responding reply declarations from the Cross-Defendants to be more persuasive. (See *Elkman, supra*, 173 Cal.App.4th at 1313.)

SJS's request at the end of the opposition for the opportunity to conduct unspecified jurisdictional discovery if the court is inclined to grant the motion is denied. (See *Beckman v. Thompson* (1992) 4 Cal.App.4th 481, 487 [trial court did not abuse its discretion in denying request for jurisdictional discovery where court "could reasonably conclude further discovery would not likely lead to production of evidence establishing jurisdiction"].) SJS has not demonstrated that further discovery would likely lead to production of evidence establishing personal jurisdiction.

SJS has failed to meet its burden to establish through a preponderance of the evidence that either of the moving Cross-Defendants purposefully availed themselves of the privilege of conducting activities in California such that they could be subject to specific jurisdiction in California. It is therefore not necessary for the court to address the second or third prongs of the case-linked/specific jurisdiction analysis. (See *Rivelli, supra*, 67 Cal.App.5th at 392-393.) The motion to quash is granted as to both moving Cross-Complainants.

CONCLUSION

SJS's request for judicial notice is denied. Cross-Defendants' request for judicial notice submitted with their reply has not been considered and is denied.

Cross-Defendants Theo Meta Hilb and Simon Bjorn-Henriksen's motion to quash service based on lack of personal jurisdiction is granted.

Given the age of this case, the court will hold a trial setting conference with the remaining parties on August 11, 2026, at 11:00 a.m. in Department 10. In advance of the trial setting conference, the parties are ordered to meet and confer to determine two or three trial dates that are nine or 10 months after the trial setting conference.

The court will prepare the order. - oo0oo -

Calendar Line 5**Case Name:** Irene Basistei v. Erik Malek et al.**Case No.:** 23CV427748

This is an action brought by plaintiff Irene Basistei (Plaintiff) against defendant Erik Malek (Defendant) and Doe defendants. The action is based on a prior civil lawsuit between these parties, case no. 19CV353464, that another judge of this court (Judge Manoukian) described as “involving almost four years of acrimonious litigation to the Nth degree.” (See November 21, 2023 order on miscellaneous motions in case no. 19CV353464). As the prior action was also titled Basistei v. Malek, the court will refer to the prior action by its case number.

The original and still operative complaint in this action, a “Complaint for Damages,” was filed in December 2023. It alleges two causes of action: (1) “Wrongful use of civil proceedings,” which is not a recognized cause of action; and (2) breach of contract. The second cause of action does not identify the contract the claim is based upon or allege whether it was oral or written. The only agreement between the parties that is described in the complaint is an alleged oral settlement agreement reached “at a judicially supervised settlement conference.” (See complaint at ¶¶ 15-17.) There are no exhibits attached to the complaint.

At issue is Defendant’s special motion to strike the complaint, opposed by Plaintiff.

REQUEST FOR JUDICIAL NOTICE

Plaintiff has submitted a request for judicial notice with her opposition. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed be relevant to the issues before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) Evidence Code section 453, subdivision (b), requires a party seeking notice to furnish “the court with sufficient information to enable it to take judicial notice of the matter.”

Plaintiff asks the court to take judicial notice of eight filings from prior legal proceedings involving Plaintiff and Defendant, submitted as exhibits to the request. Plaintiff also asks the court to make several findings based on these documents. No specific basis for taking notice of any individual document is identified. This request is denied as not relevant to the material issue before the court on this motion.

Plaintiff also asks the court to take judicial notice of four published California court decisions and to make findings based on those decisions. No specific basis for taking notice of these decisions is identified. The court denies this request as well as being not relevant to the material issue before the court on this motion—whether the complaint is subject to being struck under Code of Civil Procedure section 425.16.

LEGAL STANDARDS FOR ANTI-SLAPP MOTIONS

Code of Civil Procedure section 425.16 authorizes a person to bring a special motion to strike allegations “arising from any act . . . in furtherance of [his or her] right of petition or free

speech under the United States Constitution or the California Constitution in connection with a public issue.” (Code Civ. Proc., § 425.16, subd. (b)(1).) The special motion to strike is also referred to as an “anti-SLAPP” motion.

Courts evaluate anti-SLAPP motions using a two-step analysis. (*Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1116.) “First, the moving defendant must identify ‘all allegations of protected activity’ and show that the challenged claim arises from that activity.” (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934, citations omitted.) “Second, if the defendant makes such a showing, the ‘burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.’ Without resolving evidentiary conflicts, the court determines ‘whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.’” (*Ibid.*)

First Step: Protected Activity

“A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff’s cause of action fall within one of the four categories spelled out in [Code of Civil Procedure] section 425.16, subdivision (e).” (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51 (*Collier*).) Examples of protected activity include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).)

“In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670.)

Second Step: Probability of Prevailing

The plaintiff meets the burden of showing a probability of prevailing by demonstrating “‘that the [challenged claims are] both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Soukup v. Law Offices of Herbert Hafif (Soukup)* (2006) 39 Cal.4th 260, 291 [quoting *Matson v. Dvorak* (1995) 40 Cal.App.4th 539, 548].) The “plaintiff need only establish that his or her claim has ‘minimal merit’ [citation] to avoid being stricken as a SLAPP.” (*Ibid.*)

A plaintiff must show that there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment. (See *McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 108.) While the burden on the second prong belongs to the plaintiff, in determining whether a party has established a probability of prevailing on the merits of his or her claims, a court considers not only the substantive merits of those claims, but also all defenses available to them. (*Traditional Cat Assn., Inc. v. Gilbreath* (2004) 118 Cal.App.4th 392, 398.) Affidavits or declarations not based on personal knowledge, or that contain hearsay or impermissible opinions, or that are argumentative, speculative, or conclusory, are insufficient to show a “probability” that the plaintiff will prevail. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26 (*Gilbert*); *Dwight R. v. Christy B.* (2013) 212 Cal.App.4th 697, 714 (*Dwight R.*)). On the second step of the anti-SLAPP analysis, a plaintiff seeking to demonstrate the merit of the claim may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence. (See *Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 788.)

In order to demonstrate a probability of prevailing, the plaintiff must also produce admissible evidence sufficient to overcome any privilege or defense the defendant has asserted. (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323 (*Flatley*); (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 819-821 (*Bergstein*)).

DISCUSSION

First Cause of Action

If the complaint is construed as intending to state a cause of action for malicious prosecution, as both sides assume in their papers, then the first prong of the analysis is satisfied as to the first cause of action. Every “Court of Appeal that has addressed the question has concluded that malicious prosecution causes of action fall within the purview of the anti-SLAPP statute.” (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728, 735.)

“To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff’s, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice.” (*Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50; see also CACI, No. 1501.) The elements for the cause of action are also stated in *Robinzine v. Vicory* (2006) 143 Cal.App.4th 1416, 1422 (*Robinzine*): “To establish a cause of action for malicious prosecution, the plaintiff must prove the prior action was: (1) brought by the defendant and resulted in a favorable termination for the plaintiff; (2) initiated or continued without probable cause; and (3) initiated with malice.”

Plaintiff cannot meet her burden under the second prong to show a probability of prevailing on a malicious prosecution cause of action. This cause of action is based on a cross-complaint Defendant filed in case no. 19CV353464. At most, there is evidence before the court of a termination of that portion of the litigation in Plaintiff’s favor, as Defendant eventually dismissed his cross-complaint with prejudice. (See *Long Beach Grand Prix Assn. v. Hunt* (1994) 25 Cal.App.4th 1195, 1198 [For purposes of res judicata, a voluntary dismissal with prejudice is the equivalent to a judgment on the merits in favor of the defendant who was dismissed].) Plaintiff’s evidence (declarations from Plaintiff, from her former attorney, from her current attorney, and from two friends of Plaintiff) does not establish either that the cross-

complaint was initiated or continued without probable cause, or that it was initiated with malice. Declarations not based on personal knowledge, or that contain hearsay or impermissible opinions, or that are argumentative, speculative, or conclusory, are insufficient to show a “probability” that the plaintiff will prevail. (See *Gilbert, supra*, 147 Cal.App.4th at 26 and *Dwight R., supra*, 212 Cal.App.4th at 714.)

This action appears to be an attempt to undo Judge Manoukian’s November 21, 2023 order in case no. 19CV353464, and the resulting written settlement agreement, signed by Defendant the same day Judge Manoukian issued his order (Plaintiff had already signed it in June of 2023). (See exhibits E and F to the declaration of Elizabeth Pappy.) Among other things, that order addressed a dispute between the parties as to whether a binding oral settlement agreement was reached at a mandatory settlement conference before Judge Pro Tem Doris Suh. That is the same settlement conference referenced in the present complaint. Judge Manoukian found that the “terms as recorded” by Plaintiff’s counsel William Dresser on Zoom during the settlement conference (Plaintiff’s same counsel in this action) “were not intended to be the final terms as the parties continued to go back and forth with revisions of the settlement agreement. . . . It seems that plaintiff did agree to modify the reference to Civil Code § 1542 but otherwise did not agree to any terms concerning confidentiality and non-disparagement. Counsel for defendant is holding the settlement funds in trust in a State Bar IOLTA account but refuses to disperse them until plaintiff signed a draft prepared by defense counsel which contained the non-disparagement and confidentiality clauses.” Judge Manoukian granted Plaintiff’s motion to enforce settlement agreement, “thereby leaving the parties free to disparage one another into perpetuity.” The court denied Plaintiff’s motion for sanctions. (See exhibit E to the Pappy declaration,) Plaintiff did not move for reconsideration of that order. Nor did Plaintiff appeal the order.

The written settlement agreement states that it “contains the entire agreement between the parties hereto and no promise, inducement or agreement not expressly contained herein has been made.” (See exhibit F to the Pappy declaration.) The written settlement agreement also contains a waiver and release by both parties of all claims known or unknown. That would include any claim that Defendant had filed a cross-complaint in bad faith in that action or had failed to make a timely settlement payment under a previous, oral version of a settlement agreement that (1) Judge Manoukian expressly found did not constitute the final agreement between the parties, and (2) was superseded by the written settlement agreement. Plaintiff’s counsel could not reasonably believe that the current lawsuit was not barred by the settlement agreement in case no. 19CV353464. Plaintiff cannot ignore the waiver and release language in the written settlement agreement she signed. Plaintiff’s opposition fails to address the effect of the waiver and release on the current lawsuit, further demonstrating that she cannot show a probability of prevailing. (*Flatley, supra*, 39 Cal.4th at 323 and *Bergstein, supra*, 236 Cal.App.4th at 819-821.)

Second Cause of Action

The second cause of action fails to identify the breached contract or state whether it was written or oral. Reading the complaint as a whole, the second cause of action can be construed as based on an alleged oral settlement agreement reached at “at a judicially supervised settlement conference.” (See complaint at ¶¶ 15-17.) The second cause of action is at least a “mixed” cause of action for purposes of the first prong of the analysis, as it is based on an alleged contract formed at a judicial proceeding and/or an official proceeding authorized by

law, under Code of Civil Procedure section 425.16, subdivision (e)(1). (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 [“When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage.”].) So-called “mixed” causes of action are still subject to an anti-SLAPP motion.

To properly state a breach of contract claim, a plaintiff must allege: 1) the existence of a (valid) contract; 2) Plaintiff’s performance or excuse for nonperformance; 3) Defendant’s breach, and; 4) damage to Plaintiff resulting from that breach. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 228.)

Plaintiff cannot show a probability of prevailing on the second cause of action. As alleged, the second cause of action can only reasonably be construed as alleging a breach of an oral agreement reached “at a judicially supervised settlement conference.” (See complaint at ¶¶ 15-17.) The evidence before the court establishes that this alleged oral agreement was determined not to be the final agreement between the parties in case no. 19CV353464. As already discussed, the actual final settlement agreement (the written agreement signed by the parties) contains waiver and release language that clearly bars the second cause of action here. Plaintiff’s opposition fails to address the waiver and release language in the written agreement, or the fact that the written agreement superseded any prior oral agreement, demonstrating that she cannot show a probability of prevailing. (*Flatley, supra*, 39 Cal.4th at 323 and *Bergstein, supra*, 236 Cal.App.4th at 819-821.)

Evidentiary Objections

Defendant’s objection to the entirety of the Anthony Pinelli declaration is overruled. Defendant’s objections to paragraphs 4-16 of the declaration of Christina Howard and the attached exhibits are sustained. Defendant’s objections to paragraphs 4-21 of the declaration of Tara Gilad are sustained. Defendant’s objections to paragraphs 9-11, 13, 14, 17-29, 32, 36-38, and 40-46 of the declaration of Plaintiff’s counsel William Dresser, and to attached exhibits 008, 009, 010, 011, 013, 218, 219, 221, and 501 are sustained. The objections to paragraphs 5 and 6 are overruled. Defendant’s objections to paragraphs 6-25, 28-31, 34-54, and 56-117 of Plaintiff Basistei’s declaration are sustained, as are the objections to paragraphs 119-2006.

Attorney Fees

The prevailing defendant on a special motion to strike “shall be entitled” to recover his or her attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c).) The purpose of this fee-shifting provision is both to discourage meritless lawsuits and to provide financial relief to the SLAPP lawsuit victim. “[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131; see also *Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 364 [rejecting due process and equal protection challenges to provision].) Section 425.16, subdivision (c) is ambiguous as to what “fees and costs” are recoverable, but legislative history shows it was intended to allow only fees and costs incurred on the motion to strike itself and not the entire litigation. (*Lafayette Morehouse, Inc. v. Chronicle Pub. Co.* (1995) 39 Cal.App.4th 1379, 1383; see also *Platypus Wear, Inc. v. Goldberg* (2008) 166 Cal.App.4th 772 [A prevailing defendant on an anti-strategic lawsuit against public participation (SLAPP) motion may recover attorney fees and costs only on the anti-SLAPP motion, not the entire suit.].)

Defendant has not submitted any declarations describing the attorney fees and costs incurred in bringing the present motion. The court will therefore reserve the issue of the mandatory fee award until Defendant brings a noticed motion for attorney fees (if he chooses to do so).

CONCLUSION

Plaintiff's request for judicial notice is denied.

Defendant's special motion to strike is granted as to both the first and second causes of action.

The court will not rule on any mandatory award of attorney fees and costs to Defendant unless and until Defendant files a noticed motion for attorney fees and costs under Code of Civil Procedure section 426.16, subdivision (c).

The court will prepare the order.

- oo0oo -

Calendar Line 6

Case Name: Danny Perry v. Ford Motor Company et al.

Case No.: 25CV461535

Plaintiff Danny Perry (Plaintiff) purchased a 2021 Ford Ranger (Subject Vehicle) in June 2021 from Ken Grody Ford (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company in March 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on the reverse side of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Ibid.*) The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON THE REVERSE SIDE, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.” ’ ”].)

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:18-4:10.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting

transaction or relationship.” (Clayton Decl., Ex. A.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at pp. 9:1-2.) Plaintiff has not offered any argument opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The trial setting conference set for August 25, 2026, is VACATED. The court will hold a case status review regarding arbitration on May 6, 2027, at 11:00 a.m. in Department 10.

The court will prepare the order.

- oo0oo -

Calendar Line 7

Case Name: Joyce Noack v. Ford Motor Company et al.

Case No.: 25CV468969

Plaintiff Joyce Noack (Plaintiff) purchased a 2022 Ford Edge (Subject Vehicle) in February 2022 from Crown Ford (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued Dealership and Ford Motor Company in June 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action. Plaintiff did not file a timely opposition.

LEGAL STANDARD

Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 4:26-5:1, 5:7.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Aubrey Kramer [“Kramer Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Kramer Decl., Ex. A.) Plaintiff does not dispute that she signed the RISC when she purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that, pursuant to the Arbitration Provision on the reverse side of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by court action. See Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Ibid.*) The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON THE REVERSE SIDE, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ”].)

Dealership properly authenticated the RISC and has met its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiffs as Exhibit A to the Declaration of Aubrey Kramer. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 2:6-3:7.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

Arbitration Agreement Covers Plaintiff's Claims Against Dealership

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to

your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Kramer Decl., Ex. A.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Proceeding against both defendants in separate forums carries the risk of rendering inconsistent rulings. Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The court will hold a case status review regarding arbitration on May 6, 2027, at 11:00 a.m. in Department 10.

The court will prepare the order.

- oo0oo -